

unnecessary delay or needless increase in the cost of litigation.

(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

CCP § 128.7(b)

Therefore, in the first motion, Mr. Ricks certified to the best of his knowledge, information, and belief, that the reason CCP § 664.6 retention was not included in the CIV-110 is because Plaintiff believed it was not needed as Defendant would comply. However, now, Mr. Ricks has certified to the best of his knowledge, information, and belief, that the actual reason is that the clerk made an error and Mr. Moore was mistaken or neglectful in filing the CIV-110 without CCP § 664.6 retention. The Court has already found that submitting the CIV-110 without CCP § 664.6 was an intentional act.

The Court recognizes that CCP § 473(b) contains a mandatory provision. However, relief is mandatory unless the Court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. In this instance, counsel is now claiming fault in a manner that is conflict with arguments previously made and in conflict with findings previously made by this Court. The Court finds that the dismissal was not in fact caused by the attorney's mistake or neglect, but that the dismissal was an intentional act. The Court will not set aside the dismissal pursuant to CCP § 473(b), as again, the Court finds that filing the Request for Dismissal without CCP § 664.6 retention was an intentional act, not mistake or neglect.

Because the Court lacks jurisdiction to enforce the settlement absent the dismissal being set aside and because the Court is not setting aside the dismissal, the Court does not have jurisdiction to hear the balance of the motion.

The motion is **DENIED**. Plaintiff provided proposed Order that will be modified to reflect the Court's ruling.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion for Leave to File First Amended Cross-Complaint: Cross-Complainant Jeremiah Jese Brooke moves for an order granting leave to file a First Amended Cross Complaint to: 1) include information about the Litigation Guarantee in this action and to reference and/or specifically name lienholders as cross-defendants; 2) add James Collins, deceased, through his Estate or Personal Representative as a cross-defendant; 3) specify unknown cross-defendants as those with interests adverse to Cross-Complainant Jeremiah Jese Brooke.

The motion was originally noticed for July 27, 2026, however, it was not timely noticed. At the request of Defendant, the matter was continued for a hearing today. Defendant filed a Notice of Continued Hearing date on August 13, 2026, however, it reflects service on Plaintiff James Jackson directly when Defendant should have served Plaintiff's counsel of record. Although a Motion to be Relieved was granted on July 27, 2026, Plaintiff is still represented by counsel. Notice of Entry of Order for the Motion to be Relieved was filed on August 25, 2026, which is after Defendant served Plaintiff. Additionally, the attached Order is an unfiled and unsigned copy of the proposed Order. Plaintiff must be served with a copy of the actual Order filed in this matter. Plaintiff's counsel remains as counsel of record until Plaintiff is served with the Order executed on July 27, 2026 and Notice of Entry of Order is filed.

Without proper notice to Plaintiff, the motion is **DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

JOHNSON VS. FISHER

CASE NUMBER: 24CV-0204746

Tentative Ruling on Motion for Discovery of Peace Office Personnel Records: Defendants Brodie Fisher and Morgan Michelle Fisher seek disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. The records pertain to Plaintiff Edwin Scott Johnson's employment with the California Highway Patrol. Both Plaintiff and the California Highway Patrol oppose the motion.

Request for Judicial Notice. Defendants request the Court take judicial notice of the Order dated November 30, 2023 in Sacramento Superior Court Case No. 34-2002-0032608-CU-OE-GDS and Vehicle Code § 20008. The requests are granted pursuant to Evid Code §§ 452(a) and (d) and 453.

Merits. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Here, Defendants seek an Order that the following records be produced for an in camera review:

1. Plaintiff's CHP personnel file, including hiring documents, performance evaluations, attendance records, fitness for-duty evaluations, and separation documents (resignation, retirement, or termination);
2. All payroll, wage, and benefits records reflecting Plaintiffs compensation during his CHP employment, relevant to his claimed wage loss;
3. All workers' compensation claim files, injury reports, and related medical records pertaining to Plaintiff's, relevant to his pre-incident physical condition and prior injuries;